

RESIDENTIAL LEASE AGREEMENT

Date: _____ (Date of Signing)

1. The Parties

This Agreement is entered into between:

- **Landlord:** Jason & Abby Schmitt ("Landlord")
- **Tenant(s):** [Tenant 1 Name], [Tenant 2 Name] ("Tenant")

2. The Property

Landlord agrees to rent to Tenant the property located at: **5716 Bashford Crest Lane, Raleigh, NC 27606** ("Premises").

3. Term of Lease

This Agreement shall begin on **[Start Date]** and end on **[End Date]**.

- **Renewal:** Upon expiration, this lease will automatically convert to a month-to-month tenancy unless either party provides written notice of termination at least **30 days** before the end of the term.

4. Rent and Late Fees

- **Monthly Rent: \$1,900.00** per month, due on the **1st** of each calendar month.
- **Payment Method:** Rent shall be paid via **Zelle** to **[your Zelle phone number or email]**.
- **Internet Service (Landlord-Provided):** Landlord provides high-speed internet service to the Premises via Google Fiber. Tenant shall pay **\$70.00 per month** for this service, added to and collected together with the monthly rent, for a **total monthly payment of \$1,970.00**. This internet charge is part of the rent for payment and default purposes. Should Tenant wish to arrange their own internet service instead, Tenant must notify Landlord in writing prior to the lease start date, and this provision may be adjusted by written agreement.
- **Grace Period & Late Fees:** Rent is considered late if not received by 11:59 PM on the **5th** of the month. As permitted by North Carolina law (NCGS § 42-46), a late fee of **\$95.00** will be charged for any payment received after the 5th.
- **Returned Payment Fee:** A fee of **\$35.00** will be charged for any returned payments due to insufficient funds.

5. Security Deposit

- **Amount: \$[Amount — Max \$3,800].** Under NC law, for a lease of one year or longer, the security deposit cannot exceed two months' rent.
- **Trust Account Requirement:** In compliance with NCGS § 42-50, the security deposit will be held in a trust account at a licensed North Carolina financial institution: **[Name of Bank]**, located at **[Address of Bank]**.

- **Return of Deposit:** Landlord will return the deposit within **30 days** after termination of the tenancy. If deductions are made for unpaid rent, damages beyond normal wear and tear, or other allowable costs, Landlord will provide an itemized written accounting to Tenant.

6. Utilities and Services

Responsibility for utilities is assigned as follows. Tenant must transfer their assigned utilities into their name prior to move-in.

Utility / Service	Landlord	Tenant
Electricity (e.g., Duke Energy)		X
Water & Sewer		X
Trash & Recycling		X
Internet (Google Fiber — Landlord-provided, \$70/mo per Section 4)	X	
Lawn Care & Landscaping	X	

7. Occupants

- The Premises shall be occupied solely by the named Tenant(s) and the following minor dependents: **[List Names or write N/A]**.

8. Rules and HOA Compliance

- **Smoking:** Smoking is strictly prohibited inside the Premises.
- **HOA:** Tenant agrees to abide by all rules and regulations set forth by the Homeowners Association governing Bashford Crest Lane. Any fines levied by the HOA due to Tenant's violations will be billed to the Tenant.

9. Pets

☐ **No Pets Allowed.**

☐ **Pets Allowed:** Tenant is permitted to keep **[Number and Type of Pet, e.g., 1 dog under 40 lbs]** on the Premises.

- **Non-Refundable Pet Fee: \$[Amount]** (NC law permits reasonable one-time, non-refundable pet fees; this fee is separate from the security deposit.)
- **Monthly Pet Rent: \$[Amount]**

10. Maintenance and Condition

- **Tenant Obligations:** Tenant agrees to keep the Premises clean, properly dispose of garbage, replace HVAC air filters every **90** days, and immediately notify Landlord of any leaks, mold, or necessary repairs.

- **Landlord Obligations:** Landlord will maintain the property in a fit and habitable condition as required by NCGS § 42-42, including keeping electrical, plumbing, HVAC, and supplied appliances in good working order.
- **Move-In Condition:** A move-in inspection checklist documenting the condition of the Premises shall be completed and signed by both parties at the start of the tenancy and is incorporated into this Agreement by reference. It will serve as the baseline for assessing any damages at move-out, beyond normal wear and tear.

11. Renter's Insurance

Tenant shall obtain and maintain a renter's (tenant's) insurance policy for the duration of the tenancy, with personal liability coverage of at least **\$100,000**. Tenant shall provide Landlord with proof of coverage prior to move-in and upon each renewal. Landlord's insurance does not cover Tenant's personal property or liability.

12. Landlord Entry

Landlord or Landlord's agents may enter the Premises for repairs, inspections, or showings, and will make reasonable efforts to coordinate with Tenant in advance, except in the case of emergency.

13. Default and Eviction

If Tenant fails to pay rent, Landlord may serve a 10-Day Notice to Pay or Quit as per North Carolina eviction laws (NCGS § 42-3). If Tenant breaches any other provision of this Agreement, Landlord may terminate the lease and seek eviction in accordance with state law.

14. Signatures

By signing below, both parties agree to the terms and conditions of this Residential Lease Agreement.

Landlord

Signature: _____ Date: _____
Name: Jason Schmitt

Signature: _____ Date: _____
Name: Abby Schmitt

Tenant

Signature: _____ Date: _____
Name: [Tenant Printed Name]

Signature: _____ Date: _____
Name: [Tenant Printed Name]

This document is a template prepared for the parties named above and is not legal advice. The parties should have it reviewed by a licensed North Carolina real estate attorney before signing.